

TENTATIVE RULINGS for LAW and MOTION
March 17, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Interstate Management Company, LLC v. Presidioco Holdings, LLC**
Case No. CV2025-1172

Hearing Date: **March 17, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, plaintiff and cross-defendant Interstate Management Company, L.L.C.'s motion for summary judgment, or in the alternative summary adjudication is **CONTINUED** to **May 12, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: **Matter of Kiera Koomson**
 Case No. PR2026-0046

Hearing Date: **March 17, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Kayla Koomson, and the minor, Kiera Koomson, are directed to appear (in person or by Zoom) and be prepared to advise the Court: (1) if parents are living separate and apart; and, (2) if parents are living separate and apart, if petitioning parent has custody, care and control of the minor. (Cal. Rules of Court, rule 7.952; Prob. Code, § 3500; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: **Ramos v. Khan**
 Case No. CV2025-3444

Hearing Date: **March 17, 2026** **Department Fourteen** **9:00 a.m.**

Respondent Zahra Khan’s request for judicial notice is **DENIED**. (Evid. Code, § 452.) Respondent did not make her request in a separate document as required. (Cal. Rules of Court, rule 3.1113(l).)

The Court declines to consider respondent’s supplemental declaration, filed February 25, 2026, because it is untimely and unsigned. (Code Civ. Proc., § 1005, subd. (b); *Wong v. Stillwater Ins. Co.* (2023) 92 Cal.App.5th 1297, 1324 [“a declaration must be signed”].)

Respondent’s motion for attorney’s fees, costs, sanctions, and findings of bad faith is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 527.6, subd. (s).) First, respondent did not file a proof of service at least five court days before the hearing, showing that petitioner Patricia Ramos was properly served with the moving papers. (Cal. Rules of Court, rule 3.1300(c); see also Code Civ. Proc., § 1005, subd. (b).) Second, respondent failed to provide adequate support for her attorney’s fees request. (Code Civ. Proc., § 527.6, subd. (s); Khan decl.) Finally, respondent did not provide sufficient legal authority for her other requests (sanctions, finding of bad faith, and referral to the District Attorney). (See, e.g., *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Rexel USA, Inc. v. Solargistix LLC
Case No. CV2025-0116

Hearing Date: March 17, 2026 Department Fourteen 9:00 a.m.

Plaintiff Rexel USA, Inc.'s motion for summary adjudication is **DENIED AS MOOT**. (Code Civ. Proc., § 437c.) Plaintiff seeks summary adjudication against defendant Breit ACG MF Eaglewood LLC ("Breit"). (Notice of motion, p. 1.) On March 4, 2026, defendant Breit was dismissed. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sottana v. General Motors LLC**
Case No. CV2024-2061

Hearing Date: **March 17, 2026** **Department Eleven** **9:00 a.m.**

Motion to tax costs:

The Court rules on defendant General Motors LLC's motion to tax counsel's memorandum of costs as follows:

- The motion as to filing and motion fees is **DENIED**. (Code Civ. Proc., §§ 1032, 1033.5, subd. (a)(1).) The Court finds that these costs were reasonably necessary to the litigation and actually incurred. (Civ. Code, § 1794; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266; *Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29; *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137 – 138; Argent Decl., ¶ 3, Exhibit 1.)
- The motion as to service of process costs is **DENIED**. (Code Civ. Proc., §§ 1032, 1033.5, subd. (a)(4)(B).) The Court finds that this cost were reasonably necessary to the litigation and actually incurred. (Civ. Code, § 1794; *Jones, supra*, 63 Cal.App.4th at p. 1266; *Foothill-De Anza Community College Dist., supra*, 158 Cal.App.4th at p. 29; *Jensen, supra*, 35 Cal.App.4th at pp. 137 – 138; Argent Decl., ¶ 4, Exhibit 2.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for attorney fees:

Plaintiff Steven Sotanna's motion for attorney fees is **GRANTED IN PART** in the amount of **\$46,558.00**. (Civ. Code. § 1794.) The Court finds that:

- Defendant General Motors LLC has not shown that any of the challenged fees are excessive or were not reasonably incurred by plaintiff in connection with the commencement and prosecution of this action. (Civ. Code, § 1794, subd. (d); *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396 [“...verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.”]; see *California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537 [if the billing entries sufficiently establish the tasks were carried out in connection with the litigation, the fact that they

were block billed is of no consequence]; accord *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 487; *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24 [use of templates held to be a proper basis for fee award where counsel performed work necessary to conform those templates to the facts of the case] see also *Sundance v. Municipal Court* (1987) 192 Cal.App.3d 268, 274; Argent Decl., ¶ 30, Exhibit 14.)

- Plaintiff's counsel's rates are reasonable and commensurate with the prevailing rate in the community. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004, 1009; *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71 – 72; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243; see *Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1005 [the hourly rates sought by and awarded to counsel in other similar cases is evidence of the basic rates charged by lawyers, law clerks, and paralegals and is the starting point of the fee award]; Argent Decl., ¶¶ 12 – 17, 21, Exhibits 3, 7.)
- A multiplier is not warranted in this straightforward Song-Beverly Consumer Warranty Act case. (See *Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556-557; *Downey Cares v. Downey Community Development Com.* (1987) 196 Cal.App.3d 983, 994; Argent Decl., ¶¶ 3 – 11.)

The Court declines to award anticipated fees because Civil Code section 1794 expressly requires that fees must have been “incurred” to be recoverable. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **State of California, by and through the Department of Water
Resources v. Angelo K. Tsakopoulos Holdings, LP et al.
Case No. CV2022-1807**

Hearing Date: **March 17, 2026** **Department Fourteen** **9:00 a.m.**

Defendant SFPP, LP's motion for leave to file supplemental brief is **DENIED AS MOOT**. On February 19, 2026, the Court accepted defendant's supplemental brief filed by declaration on February 18, 2026. (Minute Order, p. 4 [2/19/26]; see *In re S.P.* (2020) 53 Cal.App.5th 13, 16 ["Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights"].)